



DECISION

Complaint No. : POS/564/KE-25

Name and Address of the Complainant : Mr. Muhammad Aamir, R/o Plot No. SB-8 and SB-9, Block-II, Gulistan-e-Jauhar, Karachi.

Name of the Agency Complained against : KMC / TMC Safoora

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **COMPLAINT REGARDING ISSUANCE OF CHALLANS FOR GENERATOR PLACEMENT OUTSIDE BIN HASHIM, SAFOORA BRANCH BY KMC AND TMC SAFOORA SIMULTANEOUSLY.**

THE COMPLAINT

Mr. Muhammad Aamir, Assistant Manager, Bin Hashim Pharmacy & Super Market, Block-11, Gulistan-e-Jauhar, Karachi filed a complaint on 11.06.2025 against KMC & TMC Safoora regarding issuance of challans for generator placement outside Bin Hashim, Safoora Branch simultaneously. It stated that previously the KMC used to issue challans for fees for keeping generators, however, since last year TMC Safoora has put its claim for collecting such fees. Complainant stated that it paid such fees to KMC in 2023-24 and to TMC Safoora in 2024-25. Now for the current FY-2025-26, both KMC & TMC Safoora have sent us challans simultaneously for the same. He stated that such tussle between the two departments have put them in a quandary. Having been perplexed with the situation of two agencies simultaneously seeking fees / charges for placing generators, he, solicited intervention of this office to help resolve the matter.

PROCEEDINGS

2. After admission of the complaint by condoning the delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and after receiving the mandatory Affidavit on Form "A" along with other relevant documents, report was called from the Agency. In response, Deputy Director (Recovery), KMC, Gulistan-e-Jauhar Division, vide letter dated 16.07.2025 submitted that recovery on municipal properties and land is the exclusive function of KMC's Anti-Encroachment Department under Section 96, Schedule-V of the Sindh Local Government Act, 2013 (Amended 2023). In support of his contention he informed that the matter has also remained before the Honorable Supreme Court of Pakistan in C.A. No. 74/2016. In its order dated 29.01.2024, the Honorable Court had directed as follows:

"Be that as it may, let the Mayor Karachi devise a plan and submit a proposal before this Court regarding 573 electric generators installed in the city. While carrying out this exercise, Sindh Environmental Protection Agency will render full assistance to the Mayor. The relevant stakeholders will also be associated, if required by the Mayor. These case are adjourned to 02-04-2024"

(2)

3. The Director Land, TMC Safoora, District East, Karachi, vide letter dated 16.09.2025 took the stance that the said generators were placed at the back side of store inside a street which is there Jurisdiction and not the Jurisdiction of KMC. It contended that KMC's jurisdiction was confined only to inter-district roads, while TMCs were empowered to collect trade license fees, property tax, and generator placement charges within their respective limits. The TMC relied upon the Supreme Court's Water Commission SOPs, according to which the KMC was not supposed to levy material stocking or temporary land use charges in areas under DMCs/TMCs except for the main roads maintained by KMC. Accordingly, TMC Safoora requested that the complaint be dismissed and that the complainant be directed to pay relevant generator fees and taxes to TMC Safoora to avoid administrative complications.

4. The KMC further clarified that the Sindh Local Government Act 2013, Chapter X, Clause 96 (1) (2) states that:-

“Provided further that whereas a tax, toll or fees is leviable both by the Metropolitan Corporation or Municipal Corporation and Town Municipal Corporation, the Town Municipal Corporation shall not levy such toll, tax or fees except with the sanction of Metropolitan Corporation or Municipal Corporation as the case may be.”

5. The report added that the Chairman TMCs have been sensitized with such proviso and repeatedly advised to desist against deviating from such rules. The Additional Chief Secretary, Local Government Department too had been requested by the Metropolitan Commissioner KMC to issue firm directives to all TMCs not to interfere in the functions of KMC.

6. The complainant was accordingly advised in the light of Hon'ble Court's observation, to maintain its arrangement with KMC and he deposited fees to KMC. The TMC Safoora, however, considered such advice from this office adversely affecting its revenue rights.

FINDINGS

7. I have examined the case file and perused correspondence, reports and rejoinders etc., and observed that:

- i. The record shows that both KMC and TMC Safoora claimed jurisdiction over recovery of generator placement fees outside Bin Hashim, Safoora Branch, leading to issuance of overlapping challans.
- ii. KMC relied on Section 96 sub section (1) & (2), Schedule-V of the Sindh Local Government Act, 2013 and the proceedings in C.A. No. 74/2016 before the Honorable Supreme Court.
- iii. TMC Safoora considers imposition & collection of such fees for placement of generators in the areas where it was empowered to collect trade license fees property tax, as Justified.
- iv. The issue at stake is more of protecting revenue rights between two sub-tiers of Local Government, than maladministration, a *sine qua non* for any intervention by this Institution.

Contd.....

- vi. The Section 120 (1) (d) of the Sindh Local Government Act 2013 mandates that such matter be referred to the Provincial Local Government Commission, which is statutorily empowered to resolve dispute between any Department of Government of Sindh and Council or between two Councils.

DECISION

8. In view of the above and in exercise of the powers conferred under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), the matter is closed without assigning any decision. The complaint is forwarded to the Provincial Local Government Commission, Sindh to get the subject dispute over revenue rights between the KMC and TMC Safoora examined and resolved by the Commission as per its mandate. Complaint is accordingly disposed as closed.

Given under my hand and seal of the office



Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
 Ombudsman Sindh

Karachi, dated 16th.04, 2026